



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

APR 9 1991

DOT-E 10569

1. Sun Refining and Marketing Company, Oregon, Ohio is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a flammable liquid residue for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a DOT Specification 111A100W1 tank car tank with defective interior heater coil, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Sun Refining and Marketing Company's application of April 2, 1991, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to preclude serious economic loss.

3. HAZARDOUS MATERIALS (Descriptor and class). Benzene, classed as a flammable liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Benzene.

5. REGULATION AFFECTED. 49 CFR 173.29(c) (1) and (2).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 111A100W1 tank car tank, NATX 81168, with a defective interior heater coil. The heater coil inlet and outlet caps must be applied and secured while the tank car tank is being transported.

8. SPECIAL PROVISIONS.

a. Shipment must be between Sun Refining & Marketing's facility in Toledo, Ohio and Tank Car Corporation of America, Oreland, Pennsylvania, a distance of approximately 600 miles, via Conrail, using the most direct route available.

b. The tank car must be marked "DOT-E 10569" above the DOT specification number in at least four inch letters on a contrasting background.

c. The Federal Railroad Administration is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

d. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. June 30, 1991.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 9 1991
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.